President	Governor
convicted of any offence against a Central law.	
2. He/she can pardon, reprieve, respite, remit, suspend or commute a death sentence. He/she is the only authority to pardon a death sentence.	2. He/she cannot pardon a death sentence. Even if a state law prescribes for death sentence, the power to grant pardon lies with the President and not the governor. But, the governor can suspend, remit or commute a death sentence.
3. He/she can grant pardon, reprieve, respite, suspension, remission or commutation in respect to punishment or sentence by a court-martial (military court).	3. He/she does not possess any such power.

CONSTITUTIONAL POSITION OF GOVERNOR

The Constitution of India provides for a parliamentary form of government in the states as in the Centre. Consequently, the governor has been made only a nominal executive, the real executive constitutes the council of ministers headed by the chief minister. In other words, the governor has to exercise his/her powers and functions with the aid and advise of the council of ministers headed by the chief minister, except in matters in which he/she is required to act in his/her discretion (i.e., without the advice of ministers).

In estimating the constitutional position of the governor, particular reference has to be made to the provisions of Articles 154, 163 and 164. These are:

(a) The executive power of the state shall be vested in the governor and shall be exercised by him/her either directly or through officers subordinate to him/her in accordance with this Constitution (Article 154).

(b) There shall be a council of ministers with the chief minister as the head to aid and advise the governor in the exercise of his/her functions, except in so far as he/she is required to exercise his/her functions in his/her discretion (Article 163).

(c) The council of ministers shall be collectively responsible to the legislative assembly of the state (Article 164). This provision is the foundation of the parliamentary system of government in the state.

From the above, it is clear that constitutional position of the governor differs from that of the President in the following two respects:[5]

1. While the Constitution envisages the possibility of the governor acting at times in his/her discretion, no such possibility has been envisaged for the President.